PLOTART

Founding Artist Agreement

Identifier PA-FAA-2026-11 · Text of 6 November 2026

1. Parties, documents and acceptance

1.1 This agreement is between **Colin MacAulay (registered as Colin Macaulay)**, an individual trading as **PlotNua** under Business Name Registration No. 794392, who operates PlotArt as an initiative of PlotNua ("**PlotArt**"), and the artist who accepts it in PlotArt Studio (the "**Artist**"). PlotArt's business address is shown on the Legal information page at plotnua.ie/terms.html. PlotArt's contact email is hello@plotnua.ie.

1.2 This agreement includes the **PlotArt Gallery Publication and Image Licence, identifier PA-GPIL-2026-11** (the "**Licence**"). If this agreement and the Licence differ, the term more favourable to the Artist applies.

1.3 The Artist accepts this agreement and the Licence in PlotArt Studio by ticking the acceptance statement shown with this identified version. The agreement takes effect when PlotArt Studio records that acceptance. PlotArt confirms the acceptance in the Artist's Studio account, where the Artist can download the exact version accepted at any time.

1.4 For each acceptance PlotArt records: the agreement and Licence identifiers; a digital fingerprint of the exact text accepted; the date and time; the Studio account and email address used; the Artist's professional name and, if the Artist chooses to give it, the Artist's legal name; and the method of acceptance. These records are kept as described in clause 11.2.

2. The Founding 25

2.1 The PlotArt Virtual Gallery is PlotArt's online gallery of original art. The **Founding 25** are up to 25 artists, based or working on the island of Ireland, selected by PlotArt through a curated process to be among the first artists in it. The Virtual Gallery will grow beyond them.

2.2 The Artist receives a dedicated online gallery and biography page in the Virtual Gallery. PlotArt sets the order in which galleries appear.

2.3 **Collection.** The Artist may display **at least ten** original artworks in the gallery at any one time. There is **no minimum**: a gallery may open with one artwork. The Artist may display more than ten. PlotArt may ask the Artist to keep the gallery to a reasonable size, or may decline a particular work, for reasonable technical or curatorial reasons, and will explain why. **PlotArt will not remove artworks already published in the gallery in order to apply a limit, without the Artist's agreement.** Sold or withdrawn works may be replaced with other original works.

2.4 **Founding year.** The founding year lasts twelve months from the day the Artist's gallery is first publicly published, not from the date of invitation, account creation or acceptance. It ends at the end of the day before the first anniversary of that date, Irish time. If the Artist accepts this agreement after first publication, the founding year still runs from first publication. PlotArt shows the start and end dates in PlotArt Studio.

2.5 **Founding Artist designation.** The Artist is a Founding Artist and keeps a permanent Founding 25 number. The Founding Artist badge is shown while the Artist's gallery is

active. If the gallery is removed, PlotArt keeps the historical record but names the Artist publicly as a Founding Artist only with the Artist's agreement.

2.6 Homepage features, promotional placement and other opportunities are at PlotArt's discretion and are not guaranteed. PlotArt aims to rotate artist features fairly.

3. No compulsory fees, ever

3.1 An "**ordinary PlotArt artist gallery**" is the standard online gallery and biography page that PlotArt provides to each artist it accepts into the Virtual Gallery, including the Artist's gallery. **Ordinary PlotArt artist galleries are never subject to compulsory membership, subscription or listing fees.** PlotArt will never charge the Artist any such fee, during or after the founding year. This commitment binds anyone who takes over PlotArt.

3.2 The only compulsory charge that PlotArt may ever introduce in connection with an ordinary PlotArt artist gallery is a **commission on qualifying sales arising from enquiries introduced by PlotArt**, and only under a separate commission agreement that the Artist expressly accepts (clause 6). **No commission percentage has been decided.**

3.3 PlotArt may offer optional additional services separately, on their own terms. They are **never compulsory**: the Artist's gallery, its position, the Artist's Founding Artist status and the enquiries PlotArt introduces never depend on taking up an optional service.

3.4 During the founding year PlotArt charges **no sales commission** and no other charge of any kind.

3.5 PlotArt does not ask for payment-card or bank details for the gallery. Nothing is payable to join, to remain or to leave.

3.6 The Artist keeps the proceeds of every sale arranged directly with a buyer, subject only to the Artist's own costs and obligations.

3.7 **Continuity.** The commitments in this clause 3 apply for as long as the Artist has a gallery on PlotArt. They are not a promise that PlotArt will operate indefinitely: PlotArt may close the Virtual Gallery for all artists under clause 10.2. The founding-year protections in clauses 2.4 and 10.2, and the protection of Founding Enquiries in clause 5, are not affected.

4. Enquiries and sales

4.1 PlotArt displays the Artist's artwork and introduces potential buyers to the Artist, or to the Artist's authorised representative, through PlotArt's enquiry service or by email.

4.2 Unless separately agreed in writing, PlotArt is not the seller, does not collect buyer payments, does not take ownership or possession of artworks, and does not arrange shipping or transit insurance.

4.3 The Artist sets or confirms the sale price, contracts with the buyer, collects payment, arranges delivery and handles applicable consumer rights, returns, tax and other obligations of the sale.

4.4 PlotArt does not guarantee enquiries or sales.

5. Founding enquiries remain commission-free permanently

5.1 A "**Founding Enquiry**" is any buyer enquiry that PlotArt introduces to the Artist during the founding year, by any route.

5.2 **No PlotArt commission is ever payable on a sale arising from a Founding Enquiry**, even if the sale completes after the founding year, and including later purchases by the same buyer that result from that same enquiry.

5.3 The status of a Founding Enquiry is fixed on the date it is introduced. No later agreement, version or change of terms can impose commission on it.

5.4 **Records.** Enquiries that PlotArt introduces through its online enquiry service are recorded automatically with a reference, the introduction date and the artwork concerned. Enquiries that PlotArt introduces by email are recorded when PlotArt enters them in the enquiry log in PlotArt Studio; PlotArt does not guarantee that every enquiry introduced by email has been recorded. PlotArt makes the relevant records available to the Artist on reasonable request.

5.5 PlotArt deletes a buyer's name, email address and message 24 months after the enquiry, as set out in its privacy notice. It keeps the reference, the introduction date, the artwork and the Artist concerned, without the buyer's contact details, for as long as this agreement lasts and six years afterwards, so that Founding Enquiries can be identified.

5.6 **The commission-free status of a Founding Enquiry does not depend on PlotArt having recorded it, or keeping any record.** If PlotArt cannot show that an enquiry was introduced after commission-bearing terms accepted by the Artist had taken effect, the enquiry is treated as a Founding Enquiry.

5.7 The Artist is invited, but not required, to tell PlotArt about a sale resulting from a PlotArt enquiry within 14 days, identifying the work, the date and an approximate price band. There is no penalty for not doing so.

6. After the founding year

6.1 PlotArt intends to fund the Virtual Gallery through a **commission-only** model: a commission on qualifying sales arising from enquiries introduced by PlotArt, as described in clause 3.2. **No commission rate is agreed under this agreement.**

6.2 The commitments in clauses 3.1 to 3.3 continue after the founding year.

6.3 At least 60 days before the founding year ends, PlotArt will tell the Artist whether it proposes any commission arrangement and, if it does, will explain it.

6.4 Commission may apply only to enquiries introduced **after** the Artist has expressly accepted a separate written commission agreement, identified by its own version, **and** that agreement has taken effect. Silence, continued use of PlotArt or the end of the founding year is not acceptance. **PlotArt will not automatically convert the Artist to any commission-bearing arrangement.**

6.5 If the Artist does not accept a commission agreement, the gallery may continue without charges on the existing basis until this agreement ends under clause 10.

7. Artwork, accuracy and permissions

7.1 The Artist confirms that they own, or are authorised to offer, each listed work, and that they have the rights needed to provide its images and accompanying material.

7.2 The Artist will supply accurate titles, medium, dimensions, year, price, framing and availability information, promptly correct inaccuracies, and mark a work as sold or withdrawn in PlotArt Studio, where that change takes effect straight away.

7.3 **Original work and AI.** PlotArt welcomes original digital work and AI-assisted practice. The Artist will disclose any meaningful use of AI in making a work. Images generated entirely from prompts are not automatically eligible as original artist-created artwork; PlotArt decides their eligibility.

7.4 An Artist represented by another gallery or agent is responsible for obtaining any necessary consent and for avoiding conflicts with exclusivity arrangements.

8. Copyright and image licence

8.1 Copyright, moral rights and ownership of the artworks, images and texts remain with the Artist or the respective rights holders. This agreement transfers no intellectual property to PlotArt.

8.2 PlotArt uses the Artist's images and information only as the Licence permits: non-exclusively and royalty-free, on PlotArt and PlotNua web pages. Any promotional use beyond those pages needs the Artist's separate permission for each use.

8.3 PlotArt will not sell or sublicense the Artist's images, make products from them, add them to stock libraries, or use them to train artificial-intelligence models.

8.4 When a work or the gallery is withdrawn, PlotArt removes the public listing within 14 days, subject to clause 6 of the Licence (lawful record retention, technical caches and material already distributed that cannot reasonably be recalled).

9. PlotArt Studio and publication

9.1 The Artist manages the gallery through **PlotArt Studio**, a private account signed in with a one-time code sent to the Artist's email address. The Artist will keep access to that email address secure and will not share the sign-in. Changes the Artist submits in PlotArt Studio count as the Artist's approval.

9.2 PlotArt will not first publish the Artist's gallery until the Artist has approved its preview by submitting it in PlotArt Studio.

9.3 Later changes are published as follows. **Straight away:** availability (available, reserved, sold), withdrawing a work, and the order of works. **After a quick check by PlotArt:** prices and corrections to existing details. **After review by PlotArt:** new works, new or replacement photographs, the biography and the portrait.

9.4 PlotArt may ask the Artist to correct, or may decline, a change that does not meet this agreement, the Licence or the photography guide, and will say why.

9.5 PlotArt may make routine technical and presentation changes that do not materially misrepresent the artwork, as set out in clause 2.3 of the Licence.

9.6 PlotArt may suspend Studio access to protect the Artist's account or the gallery, and will tell the Artist why.

9.7 Participation in the Mobile Gallery, the Living Gallery or any physical display requires a separate written arrangement covering custody, condition, transport, insurance, duration and responsibilities.

10. Leaving and ending

10.1 The Artist may end this agreement at any time by telling PlotArt in PlotArt Studio or by email. PlotArt removes the public gallery within 14 days.

10.2 PlotArt will not end this agreement during the founding year, except under clause 10.3 or if PlotArt closes the Virtual Gallery for all artists, in which case it gives at least 60 days' written notice. After the founding year, PlotArt may end this agreement on at least 60 days' written notice.

10.3 PlotArt may promptly suspend or remove unlawful or materially infringing content, giving an explanation where appropriate. PlotArt may end this agreement for a serious or repeated breach after giving the Artist a reasonable opportunity to put it right.

10.4 Ending this agreement, or PlotArt closing the Virtual Gallery, does not affect the permanent commission-free status of Founding Enquiries (clause 5), obligations already owed to buyers, or any other term intended to continue.

10.5 Neither party owes any fee for ending this agreement.

11. Information and communications

11.1 PlotArt processes artist and enquiry information in accordance with its privacy notice at plotnua.ie/privacy.html and its data-protection obligations.

11.2 PlotArt keeps the acceptance records described in clause 1.4 for as long as this agreement lasts and for six years afterwards, so that what was agreed can be shown, and then deletes them unless the law requires otherwise. Earlier acceptances are never altered or re-attributed to later wording.

11.3 Notices are given by email: to the address the Artist uses for PlotArt Studio, and to hello@plotnua.ie. Each party will promptly tell the other of a change to its contact details.

12. Responsibility and governing law

12.1 Each party remains responsible for its own acts and obligations.

12.2 Nothing in this agreement excludes or limits any liability that cannot lawfully be excluded or limited, or affects statutory consumer rights.

12.3 This agreement is governed by the law of Ireland, and the courts of Ireland have jurisdiction. This does not take away any protection the Artist has under mandatory law where the Artist lives.

13. Changes to this agreement

13.1 PlotArt may propose changes as a new, identified version in PlotArt Studio. A new version applies to the Artist only when the Artist expressly accepts it there.

13.2 No change may retrospectively alter the protection of Founding Enquiries, introduce any compulsory fee, or introduce commission, without the Artist's express acceptance under clause 6.4. Every version the Artist has accepted remains on record and can be downloaded.

14. General

14.1 This agreement and the Licence together form the whole agreement between PlotArt and the Artist about the Founding 25.

14.2 This agreement does not create a partnership, employment or agency. Neither party can bind the other.

14.3 PlotArt may transfer this agreement only to a business that takes over PlotArt, on the same terms, including clauses 3 and 5, and will tell the Artist by email.

14.4 If any part of this agreement is found unenforceable, the rest continues to apply.

Acceptance in PlotArt Studio

The Artist accepts by ticking the following statement in PlotArt Studio:

> *“I have read and accept the PlotArt Founding Artist Agreement PA-FAA-2026-11, including the Gallery Publication and Image Licence PA-GPIL-2026-11.”*

PlotArt Studio then records, and shows in the Artist’s account:

Record	Completed by PlotArt Studio
Agreement and Licence	PA-FAA-2026-11 and PA-GPIL-2026-11, with the fingerprint of each exact text
Artist	Professional name; legal name, optional (entered by the Artist at acceptance if they wish); Studio account email
PlotArt	Colin MacAulay (registered as Colin Macaulay), trading as PlotNua, Business Name Registration No. 794392
Accepted	Date and time (Irish time), and method: PlotArt Studio electronic acceptance
Founding year	First-publication date, and the founding year’s end date (clause 2.4)